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Case Name: *Tammy Read v. Timothy Cook, et al.*

Case No.: 26CV485245 (Consolidated with 26CV497503)

This is a shareholder derivative action on behalf of Apple Inc. (“Apple”), which arises from the allegedly wrongfully refused litigation demand made by Plaintiff Tammy Read upon Apple’s Board of Directors. The action is brought against defendants Timothy Cook, Katherine Adams, Eddy Cue, Craig Federighi, Greg Joswiak, Jeff Williams, Arthur Levinson, Alex Gorsky, Andrea Jung, Monica Lozano, Ronald Sugar, Susan Wagner, and Wanda Austin (collectively with Apple, “Defendants”).⁹

Before the Court is (1) Plaintiff’s motion to file her complaint and certain exhibits under seal; and (2) Apple’s motion to seal, which are both unopposed. As discussed below, the Court GRANTS Plaintiff’s motion to seal and GRANTS Apple’s motion to seal.

I. LEGAL STANDARD

“The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d).) Pleadings, in particular, should be open to public inspection “as a general rule,” although they may be filed under seal in appropriate circumstances. (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 104, fn. 35.)

“Courts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute overriding interests.” (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3 (*Providian*).) Confidential matters relating to the business operations of a party may be sealed where public revelation of the information would interfere with the party’s ability to effectively compete in the marketplace. (See *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1285–1286.)

Rule 2.550 does not directly apply to “discovery motions and records filed or lodged in connection with discovery motions or proceedings.” (See Cal. Rules of Court, rule 2.550(a)(3); *H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 892-893 (*Fuller*) [the discovery process would be impeded if a presumptive right of public access to records disclosed under protective orders and filed in connection with routine discovery motions were imposed].) Nonetheless, even in discovery proceedings, a party moving for leave to file records under seal must identify the specific information claimed to be entitled to confidentiality and the nature of the harm threatened by disclosure. (See *Fuller, supra*, 151 Cal.App.4th at p. 894.)

Where some material within a document warrants sealing, but other material does not, the document should be edited or redacted if possible, to accommodate both the moving party’s overriding interest and the strong presumption in favor of public access. (Cal. Rules of Court, rule 2.550(d)(4), (5).) In such a case, the moving party should take a line-by-line approach to the information in the document, rather than framing the issue to the court on an all-or-nothing basis. (*Providian, supra*, 96 Cal.App.4th at p. 309.)

⁹ On August 7, 2026, the Court signed the parties’ stipulation consolidating the instant action with *Hodge v. Cook, et al.* (26CV497503).